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KATIE PALACIOS and HOPE PROGRAM

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI,

Plaintiff,

v.

KATIE PALACIOS, Clinical Director, HOPE Program (Stockton, California), an individual; HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation; and DOES 1-10, inclusive,

Defendants.

Case No.: STK-CV-UF-2026-0001032

DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S NOTICE OF DEMURRER AND DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT

Date: June 25, 2026
July 7, 2026
July 15, 2026
Time: 9:00 a.m.
Dept.:

Complaint Filed: February 10, 2026
Trial Date: TBD

TO ALL PARTIES HEREIN AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on _____, 2026 at ____ .m., or as soon thereafter as the matter may be heard in Department ___ of the above-entitled court, located at Defendants KATIE PALACIOS and HOPE PROGRAM will and hereby does generally demurrer to Plaintiff's entire First Amended Complaint ("FAC"), pursuant to California Code of Civil Procedure sections 430.10(e), due to the FAC's failure to state facts sufficient to constitute a cause of action.

This Demurrer is based upon this Notice of Demurrer, the Memorandum of Points and

Authorities, Defendants' Request for Judicial Notice, and upon the pleadings, records, and files herein, and upon such oral and documentary evidence as may be presented at the hearing of this motion.

DEMURRER

Defendants KATIE PALACIOS and HOPE PROGRAM demurs to the FAC on the following grounds:

- Demurrer to the First Cause of Action for Fraud/Intentional Misrepresentation due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Second Cause of Action for Negligence due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Third Cause of Action for Intentional Infliction of Emotional Distress due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Fourth Cause of Action for Intentional Interference with Prospective Economic Advantage due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Fifth Cause of Action for violation of the Bane Act due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Sixth Cause of Action for Declaratory Relief due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the Seventh Cause of Action for violation of Business & Professions Code § 17200 due to failure to state facts sufficient to constitute a cause of action.
- Demurrer to the entire FAC due to failure to allege exhaustion.

MEET AND CONFER

Code of Civil Procedure section 430.41, subdivision (a) states that before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer. As outlined in the Declaration of Blaze Van Dine, filed in support, the parties met and conferred by telephone more than 5 days before date Defendants' responsive pleading was due. (Decl. Van Dine at ¶ 2.) Despite a good faith effort, the

parties did not reach an agreement resolving the objections raised in the demurrer. (Decl. Van Dine at ¶ 3.)

TENTATIVE RULING

The Stockton courthouse uses the tentative ruling system for law and motion matters. Tentative rulings are posted electronically by 1:30 PM the day before the hearing. To view a tentative ruling, visit Tentative Rulings under Online Services and follow the prompts.

Dated: May 22, 2026

SIMS, LAWRENCE & BROGHAMMER

By: _____
CYNTHIA G. LAWRENCE
BRYAN L. MALONE
BLAZE VAN DINE
Attorneys for Defendants,
KATIE PALACIOS and
HOPE PROGRAM

MEMORANDUM OF POINT AND AUTHORITIES

I. BACKGROUND

Plaintiff commenced this action on February 10, 2026. Plaintiff is proceeding on a First Amended Complaint ("FAC") filed on April 22, 2026. The FAC alleges that Plaintiff is a California Department of Corrections and Rehabilitation ("CDCR") parolee. (FAC at 1:28.[1]) Plaintiff has been participating in Sex Offender Management with Defendant HOPE Psychotherapy, Inc., ("HOPE"), since March 5, 2021, at the Stockton facility. (*Id.* at 1:24-2:1.) Defendant KATIE PALACIOS ("PALACIOS") is HOPE's site Director at the Stockton facility. (*Id.* at 2:15-17.)

In June of 2024, a HOPE clinician informed Plaintiff that "no homework completed by Plaintiff had ever been found in HOPE's records." (*Id.* at 6:8-12.) Plaintiff, however, had completed all homework modules and submitted them to HOPE. (*Id.* at 6:16-18.) In August of 2025, PALACIOS admitted that "HOPE routinely loses client homework packets." (*Id.* at 6:18-19.)

Moreover from 2021, to the present "in connection with each semi-annual Containment Team Meeting (CTM) . . . PALACIOS prepared and submitted treatment-status content to CDCR using CDCR Form 3034 (Containment Team Meeting/Earned Discharge Consideration Committee)[.]" (*Id.* at 7:4-7.) PALACIOS also contributed to Plaintiff's "CDCR Discharge Review Report (CDRC Form 1502-DR)." (*Id.*at 7:4-8.)

Therein, PALACIOS stated with respect to Plaintiff, "*Subject partially participates in discussion. Subject has partially completed homework packets. Subject demonstrates partial understanding of the subject material. Subject is fixated on lawsuits instead of subject material* and characterized Plaintiff's status as *not completed* sex-offender treatment." (*Id.* at 7:10-13) (emphasis in original). These statements were transmitted to Plaintiff's parole agent of record—Magana, Arestad, Acierto, Urrea, and Long Moua—and to the supervising parole agent, which included Gary Noguchi. (*Id.* at 7:15-16.)

According to the FAC, PALACIOS's statements were false. (*Id.* at 8:5-6.) The statements were the result of "HOPE's blanket retention policy, and of HOPE's own routine loss of homework

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[1] The FAC does not number paragraphs consecutively, accordingly Defendants have provided page and line citations.

packets, not the product of individualized clinical assessment of Plaintiff's actual performance." (*Id.* at 8:6-8.) In this regard, the FAC alleges that "HOPE applies a blanket retention policy under which no parolee is determined to have *completed* treatment prior to discharge from parole." (*Id.* at 4:1-2.) The FAC represents that "policy was judicially condemned in *In re Dwyer*, No. SC-080355A (San Mateo County Super Ct., March 20, 2023) (Hill, J.)." (*Id.* at 4:17.)

Moreover, the FAC alleges that "CDCR justifiably relied on HOPE's representations" as confirmed by a "November 2025 1502-DR." (*Id.* at 8:16:22.) "The November 2025 1502-DR confirms this institutional deference on its face by relying on HOPE's recommendation as the treatment-based predicate for *Continued DAPO supervision*." (*Id.* at 8:21-23.) (emphasis in original.)

According to the FAC, as a result of HOPE's blanket policy and loss of Plaintiff's homework, Plaintiff suffered economic damages from lost wages as a commercial long-haul truck driver. (*Id.* at 9:14-10:9.) The FAC alleges causes of action for: (1) fraud/intentional misrepresentation; (2) negligence; (3) intentional infliction of emotional distress; (4) intentional interference with prospective economic advantage; (5) violation of the Bane Act; (6) declaratory relief due; and (7) violation of Business & Professions Code § 17200.

II. LEGAL STANDARD

"When any ground for objection to a complaint, cross-complaint, or answer appears on the face thereof . . . the objection on that ground may be taken by a demurrer to the pleading." (Code Civ. Proc. § 430.30(a).) California Code of Civil Procedure section 430.10(e) provides that court may sustain a demurrer where the pleadings fail to state facts sufficient to constitute a cause of action. (*See* Code Civ. Proc. § 430.10(e); *see also Washington v. County of Contra Costa* (1995) 38 Cal.App.4th 890, 895.) Code of Civil Procedure section 430.10 requires that a complaint must contain "a statement of the facts constituting the cause of action in ordinary and concise language." (Code Civ. Proc. § 425.10.) If the complaint fails to state facts constituting a cause of action, the defendant can demur to the entire complaint and/or any particular causes of action therein. (Code Civ. Proc. § 430.50.)

California Code of Civil Procedure section 430.50(a) provides that "[a] demurrer to a complaint . . . may be taken to the whole complaint . . . or to any of the causes of action stated therein."

The function of a demurrer is to test the legal sufficiency of the pleading. (*Beauchene v. Synanon Foundation, Inc.* (1979) 88 Cal.App.3d 342, 346.) In considering a demurrer, the court treats "the demurrer as admitting all material facts properly pleaded, but no contentions, deductions or conclusions of fact or law." (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The court also considers matters that may be judicially noticed. (*Ibid.*) If the court sustains the demurrer, it is the plaintiff's burden to demonstrate in what manner the complaint can be amended to cure the defect. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.)

III. ARGUMENT

As set forth below, the FAC fails to set forth factual allegations establishing that either Defendant caused any harm to Plaintiff, fails to allege that Plaintiff exhausted available administrative remedies, that the FAC should have been brought as a habeas petition, and cannot state a Bane Act Claim. Thus, admitting all material facts properly pleaded in the FAC—but not contentions, deductions or conclusions of fact or law—the FAC fails to allege facts to sufficient to state a cause of action. Defendants' demurrer should, therefore, be granted.

A. The FAC Fails to Allege Facts Establishing Defendants Caused Plaintiff Harm

The FAC alleges that from 2021 through the present, Defendant PALACIOS "submitted treatment-status content to CDCR using CDCR Form 3043 (Containment Team Meeting/Earned Discharge Consideration Committee) and contributed to CDCR's Discharge Review Report (CDCR Form 1502-DR)." (FAC at 7:1-8.) PALCIOS's statements allegedly included the following: "Subject partially participates in discussion. Subject has partially completed homework packets. Subject demonstrates partial understanding of the subject material. Subject is fixated on lawsuits instead of subject material and characterized Plaintiff's status as not completed sex-offender treatment." (*Id.* at 7:10-13.)

PALACIOS's reports were "incorporated" into a November 2025, 1502-DR, resulting in an "agent recommendation" of "Discharge Denied/No Action." (*Id.* at 7:26-8:3.) This November 2025, 1502-DR was "signed by Agent Moua on November 14, 2025 and Unit Supervisor Noguchi on November 19, 2025[.]" (*Id.* at 7:26-27.) Pursuant to PALACIO's statements in the November 2025, 1502-DR "CDCR justifiably relied on HOPE's representations" in making its decision to deny

Plaintiff's discharge from parole supervision. (*Id.* at 8:16.) "But for HOPE's non-completion characterization and its repeated false partial homework reports, the November 2025 discharge review would not have had the treatment-based justification on which it expressly rested." (*Id.* at 8:23-25.)

However, even assuming the "non-completion characterization" and "partial homework reports" were false, there are no factual allegations to support the conclusory assertion that PALACIOS's statements that Plaintiff "partially participates in discussion," "demonstrates partial understanding of the subject material" and "is fixated on lawsuits instead of subject material" were not the result of an individualized clinical assessment of Plaintiff's actual performance. While Plaintiff may disagree with her conclusions, those are PALACIOS's opinions as a treating provider. The FAC provides no factual allegations to dispute her professional opinion.

The representation that Plaintiff "is fixated on lawsuits" is, in fact, supported by objective evidence subject to judicial notice. In this regard, it appears from a search of Westlaw that Plaintiff filed two other lawsuits in federal court that have resulted in opinions available on Westlaw. *See BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. K. BAROCIO, et al., Defendants.* (E.D. Cal., May 18, 2026, No. 2:26-CV-0191 DJC CSK P) 2026 WL 1389969, at *3 ("Plaintiff seeks prospective injunctive relief prohibiting CDCR from continuing to rely on the continuing discharge date ('CDD') or an order directing CDCR to recalculate plaintiff's credits consistent with the July 9, 2020 PPC policy, and money damages."); *Newanforbi v. California* (E.D. Cal., Apr. 20, 2026, No. 2:25-CV-1460-DC-CSK PS) 2026 WL 1067541, at *1 ("The incident also triggered a parole violation hold, and Plaintiff was incarcerated from the Friday of the incident until the following Wednesday before being brought to court for arraignment.").

Plaintiff has also filed two additional federal lawsuits concerning the allegations at issue in this lawsuit which have not yet resulted in opinions obtainable through Westlaw: *Newanforbi v. Agent A. Derrick, et al.*, (E.D. Cal., Jan. 5, 2026), and *Newanforbi v. HOPE Psychotherapy, Inc., et al.*, (E.D. Cal., Jan. 22, 2026, No. 2:25-cv-0195 TLN AC PS).[2] In support of this demurrer,

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[2] The number of state court actions Plaintiff has filed is unknown.

Defendants have provided a copy of the complaints filed in each of these actions and request judicial notice. (*See* Defs.' RJN., Ex. A-D.)

The Court may take judicial notice of the records any court of record of this state or of the United States. (Evid. Code § 452(e).) The Court shall take judicial notice of such records where requested by a party, the party provides sufficient notice to enable the adverse party to meet the request, and furnishes the court with sufficient information to enable it to take judicial notice. (Evid. Code § 453.) "[A] complaint otherwise good on its face is nevertheless subject to demurrer when facts judicially noticed render it defective." (*Legg v. Mutual Ben. Health and Acc. Ass'n* (1960) 184 Cal.App.2d 482, 488.)

Moreover, the November 2025, 1502 DR signed by Agent Moua on November 14, 2025 and Unit Supervisor Noguchi on November 19, 2025—which Plaintiff attached to his complaint filed in *Newanforbi v. HOPE Psychotherapy, Inc., et al.*, (E.D. Cal., Jan. 22, 2026, No. 2:25-cv-0195 TLN AC PS)—reflects numerous reasons for the "Discharge Denied/No Action" determination, including that Plaintiff "incurred multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System," was "unemployed and not attending school," and that "Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision." (*See* Def.'s RJN, Ex. D at 21-25.)

According to the FAC's own allegations the "November 2025 1502-DR" upon which CDCR allegedly relied reflected that Plaintiff had a "Stable" score of 6.[3] (FAC at 8:26-28.) That is consistent with the copy of the November 2025, 1502-DR form Plaintiff attached to his complaint filed in *Newanforbi v. HOPE Psychotherapy, Inc., et al.*, (E.D. Cal., Jan. 22, 2026, No. 2:25-cv-0195 TLN AC PS). (*See* Defs.' RJN, Ex. D at 24.)

California law explicitly provides that reasons to retain a supervised person in a sex offender management program "may include, but are not limited to . . . a Stable-2007 score of four or higher

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[3] "The Department's contracted sex offender treatment providers (whom are trained and certified pursuant to PC section 290.09) shall utilize the supplemental risk assessments Level of Service/Case Management Inventory (LS/CMI) and STABLE-2007/ACUTE-2007 pursuant to PC section 290.04, as supplemental risk assessments to the Static-99R for adult male sex offenders. The LS/CMI will measure risk of future violence of adult male sex offenders, and the STABLE-2007/ACUTE-2007 will measure dynamic (changing) risk factors of adult male sex offenders." (Cal. Code Regs., tit. 15, § 3573(d).)

for males only" as well as "Parole violation(s), relevant to the supervised person's sex offense or adherence to the Conditions and Special Conditions of Parole associated with their sex offense, that occurred within one year of the review." (Cal. Code Regs., tit. 15, § 3574(f)(2)-(4).)

In this regard, even assuming the FAC's allegations were true, the FAC fails to state facts sufficient to constitute a cause of action, as the FAC does not even allege facts establishing that either Defendant caused Plaintiff any harm. In plain terms, the FAC's own factual allegations, as well as the judicially noticeable documents, establish that Plaintiff was retained in sex offender management treatment and parole supervision due to—at a minimum— his partial participation in discussions, his partial understanding of the subject material, his fixation on lawsuits instead of the subject material, his STABLE score, and his multiple parole violations.

Causation is a fundamental element for the FAC's claims for fraud, negligence, the intentional infliction of emotional distress, intentional interference with prospective economic advantage, and violation of Business & Professions Code § 17200. (*See Sandoval v. Pali Institute, Inc.* (2025) 113 Cal.App.5th 616, 629 ("IIED has three elements: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; [and] (3) ... actual and proximate causation of the emotional distress by the defendant's outrageous conduct."); *Stephenson v. Argonaut Ins. Co.* (2004) 125 Cal.App.4th 962, 974-975 ("Whatever form it takes, the injury or damage must not only be distinctly alleged but its causal connection with the reliance on the representation must be shown. Damage to be subject to a proper award must be such as follows the act complained of as a legal certainty."); *Vasquez v. Residential Investments, Inc.* (2004) 118 Cal.App.4th 269, 288 ("The plaintiff must show (1) the defendant's act or omission was a cause in fact of the plaintiff's injury, and (2) the defendant should be held responsible for negligently causing the plaintiff's injury."); *Roy Allan Slurry Seal, Inc. v. American Asphalt South, Inc.* (2017) 2 Cal.5th 505, 512 ("Intentional interference with prospective economic advantage has five elements: (1) the existence, between the plaintiff and some third party, of an economic relationship that contains the probability of future economic benefit to the plaintiff; (2) the defendant's knowledge of the relationship; (3) intentionally wrongful acts designed to disrupt the relationship; (4) actual disruption

of the relationship; and (5) economic harm proximately caused by the defendant's action.").)

As articulated above, the FAC does not simply fail to allege facts showing causation, it is established that the Defendants were not the cause of the harm alleged. Thus, even assuming *arguendo* the FAC's allegations that HOPE had a blanket retention policy and incorrectly reported that Plaintiff failed to complete homework were true: (1) Defendant PALACIOS's alleged statements that Plaintiff "partially participates in discussion," "demonstrates partial understanding of the subject material" and "is fixated on lawsuits instead of subject material" are not disputed by any factual allegations; (2) Parole Agent Moua and Parole Unit Supervisor Noguchi relied on Plaintiff's "multiple parole violations during this review period for failure to attend sex offender treatment and failure to charge Global Positioning System," that Plaintiff was "unemployed and not attending school," and that "Newanforbi has only completed approximately 4 years of the required 6.5 years of supervision"; and (3) the FAC's allegations allege that Plaintiff's Stable score—in addition to the parole violation previously noted—provided a lawful reason to retain him in the sex offender management program pursuant to Cal. Code Regs., tit. 15, § 3574(f)(2)-(4).

The FAC fails to state facts constituting a cause of action. Defendants' demurrer should, therefore, be granted.

B. Failure to Exhaust Administrate Remedies

Penal Code § 3008 (d)(2) requires that persons convicted of a sex offense requiring registration pursuant to Penal Code §§ 290-290.02 on or after July 1, 2012, shall successfully complete a sex offender management program as a condition of parole. The length of the program shall be at least one year and up to the entire period of parole. (*Ibid.*) Within the lawful time frame, the precise length of a treatment program for any parolee is "determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court." (*Ibid.*)

"The sex offender management program is comprised of three treatment phases (Curriculum Phase, Maintenance Phase, Aftercare Phase), Containment Team Meetings (CTM), and polygraph examinations." (Cal. Code Regs., tit. 15, § 3574(a).) The purpose of a CTM "is to review the supervised person's treatment progress, dynamic risk factors, polygraph results, community reintegration, response to parole supervision, supervision category, and relevant individual case

factors to evaluate the supervised person's readiness for sex offender management program completion." (Cal. Code Regs., tit. 15, § 3574(a)(4).)

The Containment Team consists of at least "a contracted clinician, parole agent, unit supervisor or assistant unit supervisor, and the supervised person." (Cal. Code Regs., tit. 15, § 3574(a)(4)(A).) Typically, the Containment Team will be comprised of "a parole agent, unit supervisor or assistant unit supervisor, supervised person, contracted clinician (licensed psychiatrist, psychologist, or psychiatric social worker directly treating the supervised person), and victim advocacy representative." (*Ibid.*)

The Containment Team reviews the supervised person's program completion to determine the length of participation in the sex offender management program. (Cal. Code Regs., tit. 15, § 3574(e).) The determination to retain a supervised person in a sex offender management program is documented on CDCR Form 3043 Containment Team Meeting/Earned Discharge Consideration Committee, and is signed by the parole agent. (Cal. Code Regs., tit. 15, § 3574(f).)

Thereafter, the supervised person is subject to a discharge review by the parole agent, which "means a review of a supervised person's criminal history, and their adjustment and/or performance while under parole supervision for the purpose of rendering a decision as to whether or not a supervised person should be retained on parole supervision for another year or be discharged from parole supervision altogether." (Cal. Code Regs., tit. 15, § 3720(2).) A discharge review report is prepared on CDCR Form 1502. (Cal. Code Regs., tit. 15, § 3721.1.) A supervised person, such as Plaintiff, "may file a grievance regarding any mistake of fact contained in the discharge review report pursuant to the administrative remedies procedures provided in section 3480, *et seq*." (Cal. Code Regs., tit. 15, § 3723.)

Plaintiff, therefore, was authorized to file a written grievance regarding any perceived mistake of fact found in the November 2025, 1502 Discharge Review Report (or any Discharge Review Report for that matter). (*See* Cal. Code Regs., tit. 15, § 3481(a).) California law also explicitly provides that a "supervised person who wishes to submit a grievance . . . shall do so in writing to the Office of Grievances in the parole region where they are supervised." (Cal. Code Regs., tit. 15, § 3482(a)(2).) Thereafter, a "claimant who wishes to appeal a decision or remedy issued by an Office

of Grievances shall do so in writing by submitting a CDCR Form 602-2 . . . directly to the Office of Appeals by regular mail sent to the address indicated on the form or by electronic kiosk or tablet, if available." (Cal. Code Regs., tit. 15, § 3484(a).) Where the appeal is denied on the merits, the administrative remedies process is exhausted. (*See* Cal. Code Regs., tit. 15, § 3485(l)(5)(A).)

"'When an applicable statute, ordinance, or regulation provides an adequate administrative remedy, a party must exhaust it before seeking judicial relief.'" (*Foster v. Sexton* (2021) 61 Cal.App.5th 998, 1023 (quoting *Plantier v. Ramona Municipal Water Dist.* (2017) 12 Cal.App.5th 856, 865).) "Where administrative remedies exist, California courts usually will not have subject matter jurisdiction over a dispute until the administrative tribunal has made a final determination." (*Foster*, *supra*, 61 Cal.App.5th at 1023.) Exhaustion is required "even when seeking money damages unavailable in the administrative process." (*Wright v. State of California* (2004) 122 Cal.App.4th 659, 668.)

"A complaint is vulnerable to demurrer on administrative exhaustion grounds when it fails to plead either that administrative remedies were exhausted or that a valid excuse exists for not exhausting." (*Parthemore v. Co*l (2013) 221 Cal.App.4th 1372, 1379.) Here, the FAC fails to allege either that administrative remedies were exhausted or that a valid excuse exists for not exhausting. Accordingly, Defendants' demurrer should be granted.

C. Petition for Writ of Habeas Corpus

After exhausting the available administrative remedies, a "petition for a writ of habeas corpus can be used to challenge a parole restriction." (*In re David* (2012) 202 Cal.App.4th 675, 680; *see also Kevin R. v. Superior Court* (2010) 191 Cal.App.4th 676, 685 ("A parolee may bring a habeas proceeding challenging his or her parole conditions to superior court, appellate court and the Supreme Court, which have original jurisdiction to hear a habeas proceeding relating to parole.").) A petition for writ of habeas corpus is the proper filing for a paroled registered sex offender seeking ///

to challenge a condition of their paroles. (*See In re E.J.* (2010) 47 Cal.4th 1258, 1271; Cal. Rules of Court, 4.552(b)(2)(C).)

The *Dwyer* opinion referred to throughout the FAC in fact concerned a petition for writ of habeas corpus. Plaintiff fundamentally misreads *Dwyer*. The supervised person in *Dwyer* was

factually distinct from Plaintiff in that they had successfully completed a sex offender treatment program before transferring to HOPE, their attendance was nearly perfect, their Stable score was 2, they were employed, enrolled in college, and had no parole violations within the last few years. (*See* Defs.' RJN, Ex. D at 31.)

Nonetheless, putting aside the FAC's mischaracterization of *Dwyer*, the challenge to continued participation in HOPE's treatment program in *Dwyer* was brought pursuant a petition for writ of habeas corpus. Here, Plaintiff has failed to alleged compliance with the exhaustion requirement, has avoided bringing a petition for writ of habeas corpus, and seeks to obtain monetary damages from the Defendants without any prior showing of any wrongful conduct on their part. Accordingly, Defendants' demurrer should be granted.

D. Failure to Allege Facts Sufficient to State a Cause of Action Pursuant to Civ. Code § 52.1

The FAC alleges a cause of action pursuant to California Civil Code § 52.1. (FAC at 19.) § 52.1 provides a private right of action for damages against any person, "whether or not acting under color of law," who "interferes" or "attempts to interfere by threat, intimidation, or coercion, with the exercise or enjoyment by any individual or individuals of rights secured by the Constitution or laws of the United States, or of the rights secured by the Constitution or laws [of California]." "[T]he statute was intended to address only egregious interferences with constitutional rights, not just any tort." (*Julian v. Mission Community Hospita*l (2017) 11 Cal.App.5th 360, 395, as modified on denial of reh'g (May 23, 2017).)

The FAC alleges that "Plaintiff possesses statutory rights under Penal Code Section 3008(d)(2)-the right to a non-arbitrary, individualized clinical determination of treatment length and completion based on the criteria the Legislature established-and under 15 CCR Section 3574(f)(1)-

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the right to have treatment-completion and parole-discharge maintained as legally separate decisions." (FAC at 19:26-20:1.) Those allegations are false.

California Penal Code § 3008(d)(2) reads:

> Persons placed on parole on or after July 1, 2012, shall successfully

> complete a sex offender management program, following the standards developed pursuant to Section 9003, as a condition of parole. The length of the period in the program shall be not less than one year, up to the entire period of parole, as determined by the certified sex offender management professional in consultation with the parole officer and as approved by the court. Participation in this program applies to every person described without regard to when his or her crime or crimes were committed.

15 CCR Section 3574(f)(1) reads:

> When the Containment Team makes a determination to retain a participant in a sex offender management program, the determination shall be supported by good cause, as defined in Section 3000. A determination to retain a supervised person in a sex offender management program shall be stated in writing, signed by the sex offender treatment provider and parole agent on the CDCR Form 3043 Containment Team Meeting / Earned Discharge Consideration Committee (Rev.11/24), which is incorporated by reference. This completed form shall be delivered to the supervised person within 30 calendar days of the CTM and maintained in the supervised person's file. Reasons to retain a supervised person in a sex offender management program may include, but are not limited to:
>
> (1) Pursuant to Section 3573, a Level of Service or Case Management Inventory (LS/CMI) score of 11 or higher.

These provisions do not provide Plaintiff a statutory right.

Moreover, the "essence of a Bane Act claim is that the defendant, by the specified improper means (i.e., 'threats, intimidation or coercion'), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to do under the law." (*Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 883.) "[T]he Bane Act requires that the challenged conduct be intentional." (*Simmons v. Superior Court* (2016) 7 Cal.App.5th 1113, 1125.) The FAC contains no factual allegations establishing that either Defendant intentionally tried to prevent plaintiff from doing something he had a right to do under the law.

Accordingly, Defendants' demurrer to the FAC's Bane Act claim should be granted.

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IV. CONCLUSION

The FAC fails to allege facts sufficient to state a cause of action, fails to allege exhaustion, and should have been brought as a petition for writ of habeas corpus. Defendants' demurrer should, therefore, be granted.

Dated: May 22, 2026

SIMS, LAWRENCE & BROGHAMMER

By: _____
CYNTHIA G. LAWRENCE
BRYAN L. MALONE
BLAZE VAN DINE
Attorneys for Defendants,
KATIE PALACIOS and
HOPE PROGRAM

PROOF OF SERVICE

I, Kim Schmitt, certify and declare as follows:

I am over the age of 18 years, and not a party to this action. My business address is 1478 Stone Point Drive, Suite 450, Roseville, CA 95661. My business email is: kschmitt@sims-law.net I am employed in the County of Placer where this service occurs.

On the date set forth below, following ordinary business practice, I served a true copy of the foregoing document(s) described as:

DEFENDANTS KATIE PALACIOS AND HOPE PROGRAM'S NOTICE OF DEMURRER AND DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT

☐ (BY MAIL) I am readily familiar with my employer's normal business practice for collection and processing of correspondence for mailing with the U.S. Postal Service. Correspondence so collected and processed is deposited with the U.S. Postal Service that same day in the ordinary course of business. I placed for deposit in the United States Postal Service in a sealed envelope, with postage fully prepaid, to the addressee(s) below.

☐ (BY PERSONAL SERVICE) I personally delivered the above document(s) by hand between 9:00 a.m. and 5:00 p.m. to the office of the addressee(s) below.

☐ (BY OVERNIGHT DELIVERY) I deposited in a box or other facility regularly maintained by Federal Express an express service carrier, or delivered to a courier or driver authorized by said express service carrier to receive such envelope(s) to be delivered by overnight delivery, with delivery fees paid or provided for, addressed to the person(s) on whom it is to be served below.

☒ (BY ELECTRONIC SERVICE) I transmitted via electronic service through electronic mail to the offices of the addressee(s) below as stated on the attached service list on this date before 5:00 p.m.

SEE ATTACHED SERVICE LIST

☒ (State) I certify and declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on: May 22, 2026

Kim Schmitt

SERVICE LIST

Brendan Ngehsi Newanforbi Plaintiff, in Pro Per 1455 Cat Tail Drive Stockton, CA 95204 (209) 801-4442 E: bnn.cdl@gmail.com	**PLAINTIFF, IN PER**